

25STCP05017 25STCP05017

County: los-angeles

Division: Civil Law and Motion

Department: 836

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Case Number: 25STCP05017 Hearing Date: August 7, 2026 Dept: 836

(1)

PETITIONER'S

MOTION TO SET ASIDE THE ORDERS DATED ON APRIL 1, 2026

(2) RESPONDENT'S MOTION TO DISMISS THE AMENDED

COMPLAINT

Date: 8/4/26

(1:30 PM)

Case: H.J.L., et al. v. Glendale

Unified School District (25STCP05017)

TENTATIVE RULING:

Petitioner C.J.'s Motion to Set Aside the Orders Dated on

April 1, 2026 is GRANTED to the extent that petitioner seeks to set aside the portion of the order granting leave until April 24, 2026 to file a Second Amended Petition. The Court finds that proper notice of the April 1, 2026 Order was not provided by the Court to petitioner and will provide additional time for petitioner to file a second amended petition to attempt to correct the defects in the petitioner's Amended Petition as identified in the Court's April 1, 2026 Order. The motion is denied on all other grounds.

In light of the additional time given for petitioner to file

and serve a Second Amended Petition, respondent Glendale Unified School District's Motion to Dismiss the Amended Petition is DENIED as moot.

I. BACKGROUND

On December 29, 2025, petitioner H.J.L. a minor by and through Guardian Ad Litem C.J., initiated this action against respondent Glendale Unified School District (the "District"). On January 2, 2026, petitioner filed the operative Amended Petition of Writ of Mandate against respondent pursuant to CCP § 1085, seeking an order to compel the District to re-enroll petitioner on the basis that he has status under the McKinney-Vento Homeless Assistance Act. (See generally 1/2/26 Amended Petition.) The Amended Petition also identified C.J. as a petitioner.

On March 26, 2026, a hearing was held on petitioners' motion to seal under CCP § 367.3 (Safe at Home) and the District's demurrer to the Amended Petition, and the Court accepted oral argument before taking the matters under submission. On April 1, 2026, the Court issued rulings on the submitted matters. With regard to the motion to seal, the Court granted the motion to the extent that petitioners seek to proceed under the pseudonyms "H.J.L." and "C.J." and denied it to the request to seal the records in this case. (See 4/1/26 Ruling on Submitted Matter re: Seal at pp. 3-4.) As to the demurrer, the Court sustained it on the following grounds: (1) H.J.L., as a minor, lacks the capacity to sue as he is not represented by legal counsel (See 4/1/26 Ruling on Submitted Matter re: Demurrer at pp. 3-4); (2) the Amended Petition failed to allege that the administrative remedies have been exhausted (Id. at pg. 4); and (3) the Amended Petition fails to sufficiently allege that the District owes a clear, present & ministerial duty to petitioners (Id. at pp. 4-6.) The Court instructed petitioners that they would have leave to file a second amended petition by April 24, 2026. Copies of these rulings were served electronically by the Court to the parties. (See 4/1/26 Clerks Certificates of Service by Electronic Service.) On May 4, 2026, the aforementioned rulings were mailed to petitioners. (See 5/4/26 Certificate of Mailing.)

On May 4, 2026, the District filed a motion to dismiss on the ground that petitioners failed to file a second amended petition within the time provided by the Court. On May 26, 2026, petitioner C.J. filed a Motion to Set Aside the Orders dated April 1, 2026. On the same day, petitioner C.J. filed a Statement of Disqualification of Judge Curtis A. Kin for Cause. On May 27, 2026, the Court struck the Statement of Disqualification per CCP § 170.4(b) on the ground that it demonstrated no legal grounds for disqualification. (See 5/27/26 Order.) The Court further referred the issue of disqualification to the

Supervising Judicial Officer in Department 534 for review. (See 5/27/26 Minute Order.)

II. MOTION TO SET ASIDE THE APRIL 1, 2026 ORDERS

Petitioner C.J. moves to set aside the April 1, 2026 Orders on the ground that she did not receive notice of the Orders and that this Court should be disqualified per CCP § 170.1. Because the latter request is based on issues raised in petitioner C.J.'s Statement of Disqualification, filed May 26, 2026, which has been stricken, the Court declines to readdress those issues.

A.

Legal Standard

CCP § 473(d) states in pertinent part that “the court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed. . . .” The Court also has authority on its own motion to reconsider a prior order in order to correct an error. (*Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1106-1107.) “[T]he stated legislative purpose behind the 1992 amendment to section 1008 was to conserve judicial resources. . . . Forcing the parties to proceed where there is recognized error in the case would result in an enormous waste of the court’s and the parties’ resources.” (*Case v. Lazben Financial Co.* (2002) 99 Cal.App.4th 172, 187.)

B.

Analysis

1. Judicial

Notice

The District’s request for judicial notice of the Court’s April 1, 2026 Order (Ex. A) and the Clerk’s Certificate of Service by Electronic Service (Ex. B) are GRANTED pursuant to Evidence Code § 452(d).

2. Merits

Petitioner C.J. claims that she did not receive notice of the April 1, 2026 Orders. (Mot. at 1:12-27; C.J. Decl. at ¶ 3.) While the Court

electronically served the April 1, 2026 Orders on petitioner C.J. (RJN Ex. B), the Court acknowledges that this was done in error. Petitioner C.J. is a self-represented litigant, and there is no indication in the Court's records to indicate that she consented to receive electronic service from the Court in accordance with CCP § 1010.6(c)(1)-(3) and CRC rule 2.251(c)(3). Without such consent, notice from this Court must be provided to petitioner by mail. The Court's error was eventually corrected on May 4, 2026, when the Orders were mailed to petitioner C.J. (See 5/4/26 Certificate of Mailing.) Petitioner C.J. concedes that she received notice of those Orders when she appeared in Department 836 on May 4, 2026. (Mot. C.J. Decl. ¶ 3.)

Although the service error has since been corrected, the fact remains that, in the Order sustaining the District's demurrer, the Court had only provided petitioners with leave to amend until April 24, 2026, which was before petitioner C.J. received proper notice on May 4, 2026. Because the service error was caused by clerical mistake, there is good cause to extend that time for which petitioners may file a second amended petition. (CCP § 473(d); see also *Le Francois*, 35 Cal.4th at 1106-07.)

Accordingly, petitioner C.J.'s Motion to Set Aside the Orders Dates April 1, 2026 is GRANTED to the extent that the Order only provided until April 24, 2026 to amend the petition. The motion is denied on all other grounds. Petitioners are GRANTED leave to file and serve a Second Amended Petition until August 25, 2026, to attempt to correct the defects in the pleading as identified within the April 1, 2026 Order .

III. MOTION TO DISMISS

The District requests the Court to dismiss this action per CCP § 581(f)(2) because petitioners failed to file an amended petition in the time afforded by the Court in the April 1, 2026 Order. (See Notice of Motion at 2.) Because the Court has provided petitioners with additional time to amend, the motion to dismiss is DENIED AS MOOT.